

26STCV01524 26STCV01524

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C08%2F04%2F2026

Source SHA-256: b0b5cfa093f37bacc86ba851d6e550529c9ab6ab22469825ac59ffa07c0972ed

Case Number: 26STCV01524 Hearing Date: August 4, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

BEVERLY

ANNE FAUCHER,

Plaintiff,

vs.

METRO-GOLDWYN-MAYER

STUDIOS, INC., et al.,

Defendants.

Case No.:

26STCV01524

Hearing

Date:

August 4,

2026

ORDER

SUSTAINING DEMURRER TO COMPLAINT

I. BACKGROUND

Employing

Defendants allegedly placed Christopher Ottinger ("Ottinger") in charge of Plaintiff Beverly Anne Faucher's ("Faucher") division and Ottinger allegedly began placing unrealistic demands and deadlines on Faucher. Faucher advised Ottinger and other parties these expectations were unrealistic. In response, Ottinger allegedly retaliated against Faucher by micro-managing her, making discriminatory/hurtful comments against Faucher and favoring younger male employees. Faucher reported this behavior to HR; following this, Faucher was investigated and eventually terminated for alleged bullying and misconduct. Faucher sued Defendants Metro-Goldwyn-Mayer Studios Inc. ("MGM") and Amazon Studios LLC ("Amazon") for seven causes of action, including intentional infliction of emotional distress ("IIED") and negligent infliction of emotional distress ("NIED").

On

March 20, 2026, Defendants filed the instant demurrer to the sixth and seventh causes of action for IIED and NIED. Faucher filed an opposition. Defendants filed a reply brief.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10[1]

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is

implied by conduct.”

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

III. DISCUSSION

Defendants demur to the causes of action for IIED and NIED, on the basis Faucher failed to allege facts to constitute causes of action against Defendants.

A. IIED

Defendants argue the IIED claims should be subject to demurrer as Faucher does not allege Defendants engaged in extreme and outrageous behavior. A cause of action for intentional infliction of emotional distress requires: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (Hughes v. Pair (2009) 46 Cal.4th

1035, 1050-1051 [citations and quotations omitted].) A defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Ibid.) The defendant must either intend his or her conduct to inflict injury or have engaged in it with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (Ibid.)

Faucher's complaint alleged that Defendants subjected Faucher to conduct that exceeded the bounds of ordinary employment disputes, including "public humiliation, discriminatory intimidation, and retaliation against a senior executive for protected activity." (Complaint ¶ 124.) Specifically, Faucher alleged that Ottinger, as Faucher's supervisor, micromanaged Faucher, publicly suggested he preferred speaking with younger male employees, publicly and aggressively insulted Faucher in front of peers and superiors, and called Faucher "Bev the Bottleneck," (Complaint ¶¶ 47, 51, 53.) Faucher also alleged Defendants began a pretextual investigation into Faucher for alleged bullying and misconduct, eventually used to terminate Faucher without offering any sort of performance improvement plan. (Complaint ¶¶ 61-62.)

Extreme and outrageous conduct must be more than "mere insults, indignities, threats, annoyances, petty oppressions or other trivialities," but only to conduct so extreme and outrageous 'as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.' " (Alcorn v. Anbro Engineering, Inc. (1970) 2 Cal.3d 493, 499 fn.5.) A supervisor's actions relating to terminations, criticism of work practices, and negotiations are not within the realm of extreme and/or outrageous conduct, even if improper motive is alleged. (Janken v. GM Hughes Elecs. (1996) 46 Cal. App. 4th 55, 80.)

Faucher has not alleged any facts that are within the realm of extreme or outrageous behavior. Ottinger's disparaging comments fall within the realm of mere insults, indignities, and petty oppressions. Managerial decisions, such as micromanaging, investigation, and termination, are not issues for IIED claims but discrimination suits. (Ibid.)

The Court also notes Faucher's complaint does not include allegations supporting Faucher suffering from severe or extreme emotional distress. The "mere allegation that [a plaintiff] suffered severe emotional distress, without facts indicating the nature or extent of any mental suffering

incurred as a result of the defendant's alleged outrageous conduct, fail[s] to state a cause of action for intentional infliction of emotional distress." (Pitman v. City of Oakland (1988) 197 Cal. App.3d 1037, 1047.) Here, Faucher provided no facts to support any allegations regarding emotional distress, beyond alleging "[Faucher] suffered severe emotional distress." (Complaint ¶ 133.) There is no description as to the nature or extent of Faucher's suffering.

Faucher has insufficiently pled essential facts to bring this cause of action. Therefore, it is subject to demurrer.

B. NIED

Defendants argue the NIED claim should similarly be subject to demurrer, as Faucher has not pled the existence of any duty or breach of duty. In California, a cause of action for NIED is not distinct from a cause of action for negligence, beyond the fact a NIED claim only alleges emotional damages. Therefore, the same elements as a negligence claim apply: a duty of care, breach of duty, proximate cause between breach and injury, and damages to a plaintiff. (Ahern v. Dillenback (1991) 1 Cal.App.4th 36, 42.)

Defendants

argue Faucher has not alleged the existence of a duty to Faucher, outside of her employment relationship, nor that the employment relationship would impose a duty to maintain her emotional condition. The Court disagrees. Faucher generally alleged the existence of a duty to Faucher. "In California, the general rule is that all persons have a duty 'to use ordinary care to prevent others being injured as the result of their conduct. ...'" (John B. v. Superior Court (2006) 38 Cal.4th 1177, 1188-89.) The allegation of a general duty invokes the general duty role, imposing a duty on all to prevent others being injured a result of their conduct.

Similarly,

Faucher has sufficiently alleged breaches of duty by outlining offensive and harmful acts taken by Defendants' supervising employees and staff. Because of this offensive conduct, Faucher suffered emotional distress. Claims for negligence or NIED do not require specific information as to the depth and severity of emotional distress suffered.

However,

Defendants also argue the demurrer should be sustained as the NIED cause of action is based upon the same facts as the IIED cause of action, and intentional conduct cannot give rise to a negligence cause of action. While Faucher is entitled to plead alternative theories of liability, Court have held that an employer's supervisory conduct is inherently intentional, including issuing termination, criticism of work practices, and decisions to investigate or supervise. (Semore v. Pool (1990) 217 Cal. App. 3d 1087, 1105.) As all alleged actions could only be intentional, and not negligent, Faucher has not presented a viable cause of action for negligent infliction of emotional distress. (Ibid.)

Therefore, the Court sustains the demurrer in full.

C. Worker's Compensation Exclusivity

Defendants also argue the exclusive remedy for the IIED and NIED causes of action are workers' compensation. (See Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 902.) "So long as the basic conditions of compensation are otherwise satisfied [citation], and the employer's conduct neither contravenes fundamental public policy [citation] nor exceeds the risks inherent in the employment relationship [citation], an employee's emotional distress injuries are subsumed under the exclusive remedy provisions of workers' compensation." (Livitsanos v. Superior Court (1992) 2 Cal.4th 744, 754.) However, here, both of the relevant causes of action arise out of alleged sex and age discrimination, which contravenes public policy. These claims are not barred by workers' compensation exclusivity.

D. Leave to Amend

The burden is on a plaintiff to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Faucher requests leave to amend, arguing discovery and investigation may allow Faucher to develop grounds to justify a timely amendment. Although the Court would prefer Faucher provide some information as potential evidence, the Court notes this is

the first demurrer, concerning the original complaint. The Court grants leave to amend in the interest of resolving this issue on the merits and allowing Faucher another opportunity to present an actionable complaint.

IV. CONCLUSION

Metro-Goldwyn-Mayer Studios Inc. and Amazon Studios LLC's demurrer to the SAC is SUSTAINED, with 30 days leave to amend.

Defendants are ordered to give notice.

DATED:

August 4, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion

off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.